

CHAPTER 9

REASONS

The fact that Judaism has consistently rebelled against being enclosed in dogma derives from its very heart. Pre-occupation with belief arises when man is sundered from his maker or has never recognized him. Judaism has always *started from* the fact of God. Its grasp is unitary, not dualistic. Dogma is what man holds of God; but for Judaism what man holds of God is of little importance compared with what God holds of man.

The 'dogma' controversy in Judaism was therefore inconclusive by its very nature. Yet it is no less instructive for that. It made some of the best minds in Judaism give an opinion on its essential doctrine. A similar consequence emerged from the second theme we have under consideration, that of the Reasons for the precepts of the Law.

'Why were the reasons for the precepts not given?', we read in the Talmud; and are told; 'Because the two precepts for which reasons were given proved a stumbling block to one of the great ones of the earth.' The reference is to the law of the king in Deuteronomy xvii, and the malpractices of king Solomon. The king is told not to 'multiply horses' or he will get entangled with foreign states, and not to take many wives for they will entice his heart away from his God. Solomon did both; and, in spite of the warning, he fell in each case into the fate foretold. The moral is clear: 'Never give reasons!'

It should be noted in passing that for once the arithmetic of

the Rabbis would seem to have gone wrong. Far from only two of the Commandments having explicit reasons given them in the Pentateuch, there are dozens and dozens (my own reckoning is over a hundred and forty-five). The point is important. The finding, and giving, of reasons is no academic exercise. It touches the heart of every-day morality. It is the answer, or the attempted answer, to the question: 'Why should I be moral?' If the Commandment tells us *what* we should do, the Reason tells us *why* we should do it.

We have already seen the nature of the Reasons given in the Hellenistic period.¹ Broadly speaking, they are moralistic. The action ordained is said to be either itself a good deed or in some way a symbol of goodness.

But why, one may ask, just this action and not that? A helpful note is struck by a passage in the old Rabbinic commentary on Exodus relating to the command to redeem the firstling of an ass. The question is raised, Why just an ass; and the answer is given, Because the Israelites in the wilderness to whom the command was addressed happened to have with them the asses they brought out from Egypt. The remark is as profound as it is casual. All action is in some way re-action. It is called out by its factual occasion and can only be understood in its light. As the Rabbis say in another connexion: The Torah speaks in terms of the present.

This conception is the key used by Maimonides to explain some of the more obscure precepts of the Pentateuch. 'If the religious rules of the Sabaeans and the events of those days were known to us', he writes (*Guide* iii, 49), 'we should be able to see plainly the reason for most of the things mentioned in the Pentateuch.' And he took note of a further point as well. Not only the fact but also the detail of a historical ceremony cannot be questioned, and that for the simplest of reasons: if it were altered, a similar question could be raised about it in its altered form! The remark is taken from Aristotle who says in the

¹ Above (on the Letter of Aristeas), pp. 120 f.

Ethics (v, 7) that we must distinguish between the 'natural' and the 'legal': "'natural" is that which everywhere has the same force and does not exist by people's thinking this or that; "legal" is that which is originally indifferent, but when it has been laid down is not indifferent, e.g. that a prisoner's ransom shall be such and such a definite sum, or that a goat and not two sheep shall be sacrificed.' After all, if the regulation had been to sacrifice two sheep, one could have asked with equal justice: why not a goat? An institution is in fact historical, not logical. It cannot be deduced in the abstract from first principles, and reasons for it can be given only in general terms.

A similar consideration holds in the wider context. Religions as such are not isolated phenomena, each one rigorously self-contained. On the contrary, they are inter-related, influencing and being influenced by one another. And so a religion may quite often institute a definite practice not only in order to embody a positive idea of its own, but in order to warn its adherents against certain ideas of others. Again, religions are not of today or of yesterday. They are rooted in the past and retain rudimentary observances and ceremonies which may be foreign to their own fuller thinking; and such observances are retained, not for their intrinsic significance, but because their removal would undermine the structure of the whole. In a word, although we seek a rational religion we must not blink our eyes to the fact that its practical embodiment will be in concrete historical institutions.

We shall see shortly how important this appreciation of history becomes in the setting of the medieval philosophy of Judaism. By it Maimonides, however inadvertently, rescued Judaism from being presented as a purely abstract religion. But the theory of the Reasons had for its object precisely that; and we can well understand the difficulties of the medieval rationalists when faced with the requirement to 'explain' such a precept as the use of the ashes of the 'red heifer' (Numbers xix). In this case they frankly gave the attempt up. 'This is the *statute* of the

Law', they quote; and say with the early Rabbis: 'God said, "I have issued a statute, I have decreed a decree, and thou hast no right to question it."' A decree is a decree. It has no 'reason' behind it. It is an 'ipse dixit' and unquestionable.

There thus emerges apparently a twofold division of the precepts of the law, corresponding with a distinction made by the earlier sages. Some are 'judgements'; and judgements are the universal moral laws which 'if they had not been written down, would have had to be written down', i.e. laws the validity of which is 'natural' and not merely legal. Others are 'statutes'; and statutes are the seemingly arbitrary points of ceremonial. Instances of 'judgements' are the three ultimate sins (above, p. 68) of idolatry, immorality and the spilling of blood; instances of 'statutes' are the 'things the gentiles ask about' such as the abstention from swine's flesh and the use of the ashes of the red heifer.

Following Maimonides's hint we might incline to accept this distinction as that between the 'moral' and the 'historical'; but we hear in the Midrash that God declared to Moses that there is a reason for the use of the ashes of the red heifer too, and that it will be revealed to him (Moses) but to no one else: it is one of the 'hidden things' of the universe and will remain hidden until the 'eyes of the blind are opened' in the next world. Thus the absolute distinction between 'judgements' and 'statutes' falls. Ultimately there are reasons for the 'statutes' as well; and although they might be temporarily hidden from our sight, there is in principle no reason why we should not look for them and look for them with success. We can at least offer reasonable surmises.

These are well summarized in one of the most interesting books in Hebrew literature, the *Hinnuch*, generally attributed to an Aaron Hallevi of Barcelona of the thirteenth century. This book takes in turn each of the 613 precepts in its order of appearance in the Pentateuch and discusses it briefly under the heads of (a) the original text or texts in which it is found; (b) the reason for it as it is found in the text or as it is surmised

by Talmudic or later authorities; (c) its developments or ramifications in the later literature; and (d) the range of its application. The presentation is simple and persuasive and, as the author explains, is directed to show that the precepts have as their object the 'advantage of men, to help them in their thinking and to train them in their actions'. The 'advantage', he is concerned to insist, is for man, not for God. As the earlier sages themselves said (quoting Elihu in the book of Job): "'If thou be righteous, what givest thou him?'" Does it really matter to God how and what man eats? God has no advantage if men eat what is permitted, no disadvantage if men eat what is forbidden. The advantage and disadvantage are for man. They are helps (or hindrances) to his attainment of perfection.' Whence the name of the book. *Hinnuch* means training, dedication, education. The Psalmist said that the words of God are 'as silver tried in a furnace on the earth, purified seven times'. This verse gave the Rabbis of the Talmud their cue. The Commandments are the purifying furnace; their end is the refining of mankind.

For the rationalists¹ this seems to be the final word in the matter. Through the practice of the Precepts of the Law, man is capable of improvement. He can overcome some of his primitive savagery. The 'imagination of man's heart' may be 'evil from his youth', but it is educable: it can be trained and changed. Man can be taught compassion and so learn to curb the violence of his native character. But it is no use pretending the task is an easy one. The whole of the Scriptures is one long record of backsliding. Yet there is hope even for the worst of us. We can 'turn ourselves and live'.

All this is Biblical commonplace and is only embroidered in the later literature. Yet it is worth recalling its two sides. On the one hand the Bible is the least placid and the least self-complacent of the world's great books. It is gloomy, threatening, tempestuous. Its background is one of darkness and oppression, of the 'boar out of the wood' and the 'wild beasts of the

¹ For the Kabbalists, see below, pp. 148 f.

field', of 'men of blood and deceit'. There is little here for our comfort, as there is little in the deeds recounted and condemned in the Pentateuch and historical books and prophets. To be honest, man is not a pretty object; and the Hebrew Bible is honest. Whether Cain existed as a historical figure or not, there are plenty of Cains in life and they are always finding excellent excuses for killing the Abels.

This is on the one hand. On the other we have the appeal, the hope, the response: 'If thou actest well, shalt thou not be accepted?' Biblical phrases about a new heart and a new spirit are well known, and they are repeated and extended in the later literature. The old life can be thrown over and a new life started. The wrongdoer can be re-created and start afresh as a new man.

This re-creation, we hear from the whole literature, is the proper function of Torah, that is, of Judaism. To it everything is subordinated and it is to it that the precepts are instrumental. I quote a few phrases which turn on what is almost a pun. The Hebrew word translated 'do' in such phrases as '*do* my commandments' means also to 'make'. So, say the Rabbis, whoever fulfils ('does') the Law is as if he had *made* it and given it from Sinai. And he not only 'makes' the Law. By so doing, that is, by 'making' the Law, he 'makes' himself. For when we read in Deuteronomy 'that ye might *do* them', the meaning (by a slight textual manipulation) can be understood to be 'that by so doing ye might make yourselves'. In the same way we are told to understand the words of Leviticus xxvi, 3, 'If ye keep my commandments and do them', in the sense: 'If ye keep my commandments, ye make yourselves.' When God chose Abraham, he said (Gen. xii, 2): 'And I will *make* thee' (not, 'appoint' thee), meaning (*Tan. Lech Lecha* § 4) 'I create thee a new creation.'

The exegesis is unusual but it is offered obviously not as philology but as homiletics. A moral lesson is being taught: man is re-made by 'doing' the commandments. And we are offered a further thought, or rather, perhaps, an example of

the root idea in action. We are told to follow Abraham who took with him, on leaving Ur of the Chaldees, the 'souls which they had made [again the same word; the Revised Version (Gen. xii, 5) says 'gotten', but the Hebrew is clearly and simply 'made'] in Haran'. A Rabbi (*Ber. R.* xxxix, 21) remarks on the marvel: 'If all the beings in the world were to gather together and try and create one single mosquito,¹ they could not put into it the breath of life, and yet Abraham "made" souls! Whence is to be learned that anyone who brings an idolater near to God and his worship, is, as it were, his creator.'

This is a marvel indeed. Through the Law we not only make (re-create) ourselves. We also make, that is, re-create, others. And the old Rabbinic commentary to Deuteronomy knows how. Abraham created souls, it says, through communicating to them his love for God; and it exhorts us to do likewise: "'And thou shalt love the Lord thy God" *in the same way as Abraham did*, by making God beloved to men.' I suspect that here too they manipulated the reading of the text. By a slight but subtle change they managed to read, in the place of 'and thou shalt love', 'and thou shalt cause to love'. Philologists may shudder but the contrivance is deliberate. And it is of great moral significance; for it turns what might become a cloying piece of sentimentality into a summons to join in the labour of educating human kind.

Characteristically enough, the Rabbis do not stop there. They tell stories to show how it can be done. It is not done by preaching. 'Great is theory', they were fond of saying, 'when and because it brings to practice'. The essential is to practise the life of goodness and thus make the life of goodness, and its Giver, beloved:

"'And thou shalt love the Lord thy God"—see to it that the name of Heaven becomes beloved through you. A man should read and study, and his converse with his fellow man should be gentle and his dealings with them becoming. When men see

¹ Cf. the saying of Montaigne (II, xii), on the Thracians' deification of Agesilaus (below, p. 180).

that in his dealings with them he is trustworthy, they say: Happy is he who learned Torah [Judaism], happy is his father and his teachers; how seemly and becoming are his actions, how proper his ways! He it is whom the prophet calls God's servant, Israel in whom God delights.'

Or again (Deut. R. iii, 5), less abstractly:

'Simeon ben Shetach [first century B.C.] bought a donkey from an Ishmaelite. After he had taken it away, his students found a precious stone on its neck. Said they: "Rabbi, 'the blessing of the Lord maketh rich'" (Prov. x). Said Simeon: "I bought a donkey; I did not buy a precious stone." He sought out the Ishmaelite and returned the precious stone. At which the Ishmaelite cried aloud: "Blessed be the God of Simeon ben Shetach."'

We have thus moved from an enquiry into the reasons behind each individual commandment to the Reason behind the very idea of Commandment. The Reason is the need of our fallible humanity for moral education. We must learn to become better men; and we become better men by the continual exercise of the moral discipline of the law. The restrictions are for our good:

'It is like a doctor who visits two sick men. One is for life and one for death. To the one for life he says: This eat, this do not eat. To the one who is not for life he says: Whatever he asks for, give him.' (Lev. R. xiii, 2)